



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 18 1990

DOT-E 9968
(FIRST REVISION)

1. Moli Energy (1990) Ltd., Maple Ridge, B.C., Canada, (U.S. Agent: Ansum Enterprises, Inc., Boca Raton, Florida) is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of lithium batteries for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a limited number of certain lithium batteries on passenger-carrying aircraft, motor vehicles, rail-freight, cargo vessels and cargo aircraft.

2. BASIS. This exemption is based on an application from Moli Energy (1990) Limited dated April 25, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon and supplemental letters dated June 29, 1989, and May 16, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Rechargeable lithium- molybdenum disulfide batteries contained in camera photoflash units, computers, portable communication devices, instruments and similar devices or in packagings provided by the manufacturer classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). None.

5. REGULATION AFFECTED. 49 CFR Part 107 Appendix B, 173.206, 175.3, 175.85

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo aircraft and passenger-carrying aircraft.

7. SAFETY CONTROL MEASURES.

a. Batteries must be of the lithium - molybdenum disulfide type described in the application dated April 12, 1988, and may not contain more than 8 cells and not more than 7.0 grams of lithium. No component cell of any battery may contain more than 0.85 grams of lithium.

b. Batteries must be in devices such as cameras or calculators or in the packagings provided by the manufacturer.

c. No more than three batteries (either in devices or in manufacturer's packagings) may be carried by a passenger or crew member on his/her person, in carry-on baggage or checked baggage.

8. SPECIAL PROVISIONS.

a. The requirements of 49 CFR do not apply to lithium batteries when offered and transported under the conditions specified in this exemption.

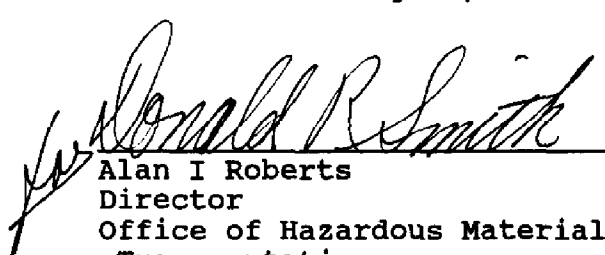
b. Batteries shipped under this exemption must have thermal cut-off fuses and positive temperature coefficient (PTC) fuses installed in a manner similar to that shown in Figure 1 of the section of the application titled "Eight Cell Battery Pack Cycling and Safety Testing Report" so as to prevent a flow of current which will cause any cell in the battery to vent.

c. A copy of this exemption must be carried aboard each aircraft, cargo vessel and motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving a hazardous malfunctioning of a battery of the type authorized in this exemption must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable, including any incident occurring outside of transportation when Moli Energy Limited is made aware of its occurrence.

10. EXPIRATION DATE. May 31, 1992.

Issued at Washington, D.C.:



Alan I Roberts
Director
Office of Hazardous Materials
Transportation

SEP 18 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch

Dist: FAA.